

control of the item or category of the item pursuant to Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. It is unacceptable to prepare a response that does not comply with this provision of the Discovery Act.

2. The Court rules on Barabi's Motion to Compel the Ferreiras to provide Further Responses to Special Interrogatories, Set One, Nos. 20 through 31, filed on November 18, 2025, as follows.

No. 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30 and 31 . **Granted**. The objections are **overruled**, with the exception of any objections based on the attorney client privilege and the work product doctrine, which are **sustained**. As defined, the term "Work," is not ambiguous. The other definitions stated in the request are not vague, or ambiguous. Ferreiras shall produce further answers to these interrogatories. . Granted. The objections are overruled. As defined, the term "Work," is not ambiguous. The other definitions stated in the request are not vague, or ambiguous. Ferreiras shall produce further responses, and shall redact any privileged communications. If Ferrerias produced every document that is responsive to this request, then it should say so in a further verified response. Ferreiras are not required to produce further answers that would breach the attorney client privilege.

3. Time for responses. All further responses to request for production of documents and interrogatories shall be produced no later than fifteen (15) days from the date of this order and shall be verified.
4. Barabi's counsel shall prepare a proposed order conforming to this ruling no later than ten (10) days from the date of this hearing, attaching a copy of this tentative ruling.
5. Each party to bear their own attorney's fees and costs in prosecuting and/or defending against these motions.
6. The Court reserves the option of referring further discovery motions to a discovery referee.

25. 9:01 AM CASE NUMBER: C22-00742
CASE NAME: PHILIP FERREIRA VS. WILLIAM MYERS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE**
FILED BY: BARABI, MINOU
TENTATIVE RULING:
See Tentative Ruling on Line No. 24, above.

26. 9:01 AM CASE NUMBER: C22-01790
CASE NAME: KATHERINE STAUDT VS. DOES 1 TO 50
***HEARING ON MOTION FOR DISCOVERY TERMINATING SANCTIONS AGAINST PLAINTIFF**
FILED BY: PUREMIST CORPORATION
TENTATIVE RULING:
Summary

Defendant Puremist Corporation's ("Puremist") Motion for Terminating Sanctions against Plaintiff Katherine J. Staudt ("Plaintiff") is **granted** as set forth herein.

Background

This is a personal injury action where Plaintiff Katherine Staudt ("Plaintiff") claims that on September 10, 2020, she slipped and fell at the Safeway store operated by Defendant Albertsons Safeway LLC ("Safeway") located at 1355 Moraga Way, Moraga, CA, due to a dangerous condition maintained by Safeway and/or other defendants. She claimed to have sustained significant injuries in that incident. She brought suit against both Safeway and Puremist.

On November 21, 2025, Puremist filed this Motion for Terminating Sanctions against Plaintiff ("Motion"), which was accompanied by a Notice, Amended Notice filed November 26, 2025, Memorandum of Points and Authorities, the Declaration of Counsel Eanna Maria Mejia, and a Proposed Order. Through this Motion, Puremist asserts that Plaintiff has not complied with her obligations to respond to written discovery propounded on March 17, 2025, which includes Form Interrogatories, Special Interrogatories, and a Request for Production of Documents (See Declaration of Ms. Mejia, Exhibit A). Plaintiff's responses were due on April 21, 2025. To date, Puremist claims that Plaintiff did not respond to the discovery requests.

Subsequently, on October 29, 2025, this Court heard Puremist's Motion to Compel Discovery Responses to the discovery propounded on March 17, 2025. Plaintiff did not oppose this Motion. Accordingly, the Court granted Defendant's Motion to Compel, ordering Plaintiff to produce verified responses to Puremist's Form Interrogatories, Special Interrogatories, and Request for Production of Documents, Set One, no later than 15 days from the Notice of Entry of Order. The Court further ordered an award of sanctions to Puremist in the amount of \$510.00. To date, Plaintiff has not produced any response to discovery served over one year ago.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine court days before the hearing of this Motion is March 12, 2026. Plaintiff, in *propria persona*, failed to file a timely opposition to this Motion by March 12, 2026. On March 18, 2026, Puremist filed a reply brief confirming that no timely opposition was provided by Plaintiff to Puremist.

Analyses

Self-Represented Litigants are Subject to the Rules of Discovery

The Court is aware that Plaintiff is proceeding without an attorney in her lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rapleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523. The rules

apply to all motions pursued under the Discovery Act, which is governed by the Code of Civil Procedure.

Nevertheless, “[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney’s level of knowledge about the legal system and are more prone to misunderstanding the court’s requirements.’ [Citation.] When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.’” *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants. Indeed, the Court’s prior rulings and orders to comply with her discovery obligations in previous motions set forth compliance dates, which Plaintiff failed to obey. Plaintiff has also filed her own motions to quash subpoenas issued for her medical records. Accordingly, it appears to the Court that Plaintiff has some awareness of Discovery Rules. Plaintiff is not excused from following the rules that govern discovery. She is not entitled to avoid compliance with this Court’s order of October 29, 2025, which was filed on October 30, 2025.

Non-Opposition

California courts recognize that a party’s failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See local rules: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>. Here, the Court finds that Plaintiff’s non-opposition is deemed to be her concession that this Motion has merit.

Terminating Sanctions

While this motion is unopposed, the Court is mindful of its duty to exercise terminating sanctions only when legally appropriate. Terminating sanctions under Code of Civil Procedure section 2023.030 authorizes a trial court to impose monetary sanctions, issue sanctions, evidence sanctions, or terminating sanctions against ‘anyone engaging in conduct that is a misuse of the discovery process.’” *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 991. Subdivision (d) of section 2023.030 provides, “The court may impose a terminating sanction by one of the following orders: (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. (2) An order staying further proceedings by that party until an order for discovery is obeyed. (3) An order dismissing the action, or any part of the action, of that party. (4) An order

rendering a judgment by default against that party.”

The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.”’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.

A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” *Doppes, supra*, 174 Cal.App.4th at p. 992, fn. omitted, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280 disapproved on other grounds in *Mileikowsky v. West Hills Hospital & Medical Center* (2009) 45 Cal.4th 1259.

The trial court may order a terminating sanction for discovery abuse “after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.” *Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246. The standard of appellate review of a trial court ruling on a terminating sanction is not whether the trial court should have imposed a lesser sanction; rather, the question is whether the trial court abused its discretion by imposing the sanction it chose. *Liberty Mutual Fire Ins. Co. v. LCL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1105.

Applied here, Plaintiff has not complied with this Court’s Discovery order dated October 29, 2025. The Court finds that Plaintiff’s failure to provide basic information about her claims requested by Puremist’s discovery requests severely prejudices Puremist. Puremist cannot move forward in preparing its defense to Plaintiff’s claim. The Court finds that Puremist will be severely prejudiced if Plaintiff is permitted to pursue her case against Puremist, and Puremist is precluded from obtaining any evidence to defend itself. The Court finds that Plaintiff’s failure to comply with the Court’s order is willful, and amounts to an unjustified abuse of discovery, which follows a history demonstrating a spirit of willful non-cooperation in this case. Accordingly, the Court finds and concludes that additional monetary and issues sanctions are insufficient, and a less severe sanction will not yield compliance. In applying the foregoing authorities, the Court finds good cause to make the following orders.

Ruling

1. Puremist’s Motion for Terminating Sanctions is **granted**.
2. Pursuant to Cal. Code of Civ. Proc. § 2023.030(d)(3), Defendant Puremist Corporation is **dismissed** with prejudice from this action.
3. Defendant Puremist is the prevailing party under Cal. Code of Civ. Proc. § 1032(a)(4). Puremist shall recover its costs pursuant to Section 1033.5 pursuant to a Memorandum of Costs filed no later than thirty (30) days from the date of this hearing.
4. Puremist shall recover its past sanctions due from Plaintiff in the amount of \$510.00.
5. Puremist’ Counsel shall prepare and e-file a proposed order conforming to this ruling, attaching a copy of this ruling no later than five (5) days from the date of this hearing.